

IP Overview: Breathe Project

This document is research, not legal advice. Consult a qualified IP attorney before making any decisions.

Critical Alert: The Patent Clock May Already Be Running

If you have deployed this app to a public URL or made your GitHub repository public, you have triggered the **one-year US patent filing deadline**. Under US patent law, you must file a patent application within one year of the first public disclosure of your invention — or you permanently lose the right to patent it. In most other countries, any public disclosure *before* filing eliminates patent rights entirely, with no grace period.

This is time-sensitive. Do not delay consulting an attorney.

What You Have Right Now (Automatic, No Action Required)

Copyright — Already Yours

Copyright attaches automatically the moment you create an original work. You already own copyright on:

- The **source code** (every file in the project)
- The **visual design** — the Morph's appearance, the Gate aesthetics, the color palette, UI layout, and motion style
- The **written content** — tutorial text, home screen copy, mode names

Copyright lasts your lifetime plus 70 years. No filing required.

What copyright does NOT protect: The *idea* of a breathing visualizer. Copyright only covers your specific expression — the actual code, the specific visuals — not the concept or method behind them.

Summary of All Protection Types

Protection	What It Covers	Cost	Timeline	Priority
Copyright (auto)	Code, visuals, text	Free	Immediate	You have this now
Copyright Registration	Strengthens enforcement rights	~\$65–85 filing fee	3–6 months	Recommended soon
Provisional Patent	Secures priority date for interaction method	\$1,500–\$3,000 with attorney	File ASAP	Urgent
Utility Patent	Full protection of interaction method	\$10,000–\$20,000 with attorney	2–5 years	After provisional
Design Patent	Visual appearance of Morph/Gates	\$2,000–\$5,000 with attorney	1–2 years	Consider
Trademark	"Breathe" brand name	\$250–\$400/class + attorney	1–2 years	Caution — see trademark doc

Is the Core Idea Unique?

The short answer: the specific combination appears to be genuinely novel. Most breathing apps are **passive** — an animation tells you when to breathe and you follow it. Breathe inverts this: **you drive the animation with your actual breathing**. No app I'm aware of uses two physical thumb sliders in opposition to control a real-time 3D morphing object, combined with spatial gate timing.

See [patentability.md](#) for deep analysis of prior art and specific claims.

The Three Documents That Follow

- [patentability.md](#) — What can be patented, what's novel, prior art landscape, and the Alice doctrine risk for software patents
 - [trademark-and-brand.md](#) — The "Breathe" name concern (Apple), copyright registration, and trade dress
 - [action-plan.md](#) — Prioritized next steps with costs and timelines
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ACTION PLAN

Before Anything Else: Establish Your Disclosure Timeline

Answer these questions today and write down the dates:

1. When did you first deploy this app to a public URL?
2. Is your GitHub repository public? If so, when was it made public?
3. Have you demonstrated or shared this with anyone outside your household?
4. Have you posted any screenshots, videos, or descriptions publicly (social media, forums)?

Why this matters: Each public disclosure above may have started the 1-year US patent clock. The earliest date is your deadline. You must file a patent application before that anniversary or lose the right to patent in the US. In most other countries, you may have already lost international rights.

ANSWER: *The GitHub repo has been public since May 13, 2026, and the Vercel deployment has been live throughout. That means your one-year US patent filing deadline is approximately May 13, 2027. Other countries (EU, etc.) have no grace period — those rights are already gone unless you file before any further disclosure.*

The research doc recommends a provisional patent application as the urgent first step — it's cheaper (\$1,500–\$3,000 with an attorney), locks in your priority date, and buys you 12 more months to decide on the full utility patent. That's the move to make before the May 2027 deadline, ideally sooner.

The doc also notes the app appears genuinely novel — the two-slider opposition driving a real-time 3D morph with spatial gate timing is a specific combination with no known prior art.

Step 1 — Document Everything (This Week, Free)

Create a dated evidence file:

- Screenshot the live app at its current state
- Run `git log --oneline > git-history.txt` and save it
- Write a one-page "invention disclosure" in plain language: what you built, when you built it, what makes it different from other apps. Date and sign it.
- Save all of these in a folder with today's date

This documents your invention timeline and will be valuable to an attorney.

Step 2 — Consult an IP Attorney (Within 2 Weeks)

A one-hour consultation (~\$300–\$500) will tell you:

- Whether your public disclosure date leaves time for a patent filing
- Whether the dual-slider mechanic survives a quick prior art assessment
- Whether "Breathe" as a trademark is viable or risky given Apple's mark
- What type of patent (utility, design, or both) is appropriate

How to find one:

- Search for attorneys who specialize in "software patents" or "mobile application IP"
- AIPLA (American Intellectual Property Law Association): aipla.org — has a Find a Member directory
- Nolo's Lawyer Directory: nolo.com/lawyers
- Your state bar association's referral service

Look for someone with experience in both software patents and consumer product IP.

Step 3 — File a Provisional Patent Application (Within 30–60 Days)

A provisional patent application (PPA):

- **Secures your priority date** — from this point, you are legally "first"
- Costs ~\$320 in USPTO filing fees alone; ~\$1,500–\$3,000 total with an attorney
- Does not get examined or grant protection on its own
- Gives you **12 months** to decide whether to invest in a full utility patent
- Lets you legally label the work "**Patent Pending**"

The provisional is the most important near-term action if you believe the invention is valuable. It's the lowest-cost way to preserve your options.

Claims to discuss with your attorney:

1. The dual opposite-orientation slider method driving real-time 3D morphing
2. The spatial gate breath-timing guidance system
3. The adaptive interval learning system (Slowing Down mode)
4. The combined system

Step 4 — Register Your Copyright (Within 60 Days)

Visit **copyright.gov** and file online:

- "Computer Program" registration for the source code
- "Work of Visual Art" for the visual design (or bundle them)
- Filing fee: ~\$65–\$85

Registration creates a legal record and is required before you can sue for infringement in US federal court. If registered before any infringement, you can claim statutory damages up to \$150,000/work.

Step 5 — Trademark Strategy Decision (Within 3 Months)

1. Have your attorney run a **trademark clearance search** on "Breathe" (~\$500–\$1,000)
2. Based on the results, decide:
 - Proceed with "Breathe" (if the Apple conflict risk is acceptable)
 - Modify the name ("Breathe Form," "Breathe / Morph," etc.)
 - Coin a new, invented name for stronger protection
3. File trademark application: ~\$250–\$400 per class (Classes 9 and 41 are most relevant)

Step 6 — Full Utility Patent Decision (Within 12 Months of Provisional)

You have 12 months from your provisional filing to decide whether to file a full utility patent application. Key questions to answer by then:

- Is there a clear business model that benefits from patent protection (licensing, acquisition, app revenue)?
- Have competitors entered this space?
- What did the prior art search reveal?

Full utility patent costs ~\$10,000–\$20,000 with an attorney and takes 2–5 years to grant.

Total Cost Estimate

Action	Filing Fee	Attorney Estimate	Total Estimate
Attorney consultation (1 hr)	—	\$300–\$500	\$300–\$500
Provisional patent	\$320	\$1,000–\$2,500	\$1,500–\$3,000
Copyright registration	\$65–\$85	DIY possible	\$65–\$85
Trademark clearance search	—	\$500–\$1,000	\$500–\$1,000

Trademark registration (1 class)	\$250–\$400	\$500–\$1,000	\$750–\$1,500
Full utility patent	\$1,600+	\$8,000–\$18,000	\$10,000–\$20,000
Near-term total (steps 1–4)			~\$2,000–\$5,000
Full program total			~\$12,000–\$25,000

Priority Order

1. **Establish your disclosure date** — free, do today
2. **Consult an IP attorney** — time-sensitive, do within 2 weeks
3. **File a provisional patent** — do within 30–60 days if attorney recommends it
4. **Register copyright** — do within 60 days, low cost, high value
5. **Decide on trademark** — do within 3 months
6. **Full patent decision** — within 12 months of provisional

Patentability Analysis: Breathe Project

Research, not legal advice. Consult a qualified IP attorney.

What Makes Something Patentable?

To be granted a patent, an invention must be:

1. **Novel** — Not previously known, used, or published anywhere in the world
 2. **Non-obvious** — Not an obvious variation of what exists to someone skilled in the field
 3. **Useful** — Has practical utility (breathing guidance clearly qualifies)
 4. **Patent-eligible subject matter** — Not a pure law of nature, natural phenomenon, or abstract idea (a significant challenge for software — see Alice section below)
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The Core Innovation

The most distinctive and potentially patentable aspect of Breathe is its **interaction paradigm**:

A user actively controls a real-time 3D visualization using two physical thumb sliders. The slider positions correspond directly to the physical act of breathing. Crucially, the sliders are **oriented in opposite directions** — left slider: up = exhale, down = inhale; right slider: up = inhale, down = exhale — mirroring the complementary, opposing nature of inhalation and exhalation. The combined slider values drive the shape, color, and glow of a three-dimensional morphing object in real time.

This is an **active** paradigm. The user creates the visualization through their breath. Most apps are passive: a pre-programmed animation tells you when to breathe and you follow it.

Prior Art Landscape

These are the most relevant apps and products I'm aware of. A formal patent search must be conducted by a professional — this is a starting-point assessment only.

App / Product	Mechanism	Why It Likely Doesn't Conflict
Apple Watch Breathe / Mindfulness	Passive bloom animation + haptic prompts	Passive — the app drives the animation,

		not the user. No sliders.
Calm, Headspace	Guided animated visuals	Passive. User follows, does not control.
Breathwrk	User taps to mark breath phase	Touch interaction, but no slider, no 3D morphing, no spatial gates, no real-time shape change
Spire Stone	Wearable automatically detects breathing	Hardware-ba sed; no user-controll ed input
HeartMath Inner Balance	Hardware probe biofeedback + clinical visualization	Hardware-ba sed; clinical/HRV paradigm; entirely different
Muse Headband	EEG-based meditation feedback	Hardware-ba sed; entirely different

Google's Breathe (Android)	Passive guided circle animation	Passive
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Key differentiating factor: None of these apps require the user to *actively drive a visual* with physical sliders. The shift from passive guidance to active physical control appears to be genuinely novel.

Potentially Patentable Claims

These are the aspects of Breathe most worth discussing with a patent attorney:

Claim 1 — The Dual Opposite-Orientation Slider Interaction Method

A method for breath-guided user input comprising:

- Two touch sliders oriented in opposition (one inverted relative to the other)
- Where the natural motion of the thumbs during breathing maps intuitively to both sliders simultaneously
- Where combined slider values drive real-time visual parameters (shape, color, luminosity) of a displayed 3D object

This is the strongest candidate. The opposite-orientation mechanic has a functional rationale (it mirrors the opposing nature of inhale/exhale) and creates an interaction that is physically distinctive.

Claim 2 — Spatial Gate Breath-Timing Guidance

A method for pacing breath using spatial gates that approach the user through a 3D environment, where:

- The user must reshape a 3D object (via physical input) to fit through each gate
- Gates move at a speed calibrated to a target breath interval
- Successful passage requires matching breathing to the target pace

This gamifies breath timing in a novel way. No known app uses approaching spatial obstacles as breath-pacing cues.

Claim 3 — Adaptive Breath-Interval Learning System

A method for gradually guiding a user toward slower breathing by:

- Measuring the user's natural breath cycle length over a set number of cycles
- Setting an initial gate interval equal to the measured natural length
- Gradually extending the interval over time to gently slow the user's breathing

The Slowing Down mode's "measure first, then adapt" approach is distinctive. It starts where the user is, rather than imposing a fixed target.

Claim 4 — Combined System

A unified mobile application system comprising all three above methods working together. Combined claims are often where the most durable protection lies.

The Alice Doctrine: The Biggest Risk for Software Patents

Since the Supreme Court's 2014 ruling in *Alice Corp. v. CLS Bank International*, US courts and the Patent Office have invalidated many software patents as mere "abstract ideas implemented on a computer." This is the primary obstacle to patenting Breathe.

The Risk

A patent examiner could argue: "The idea of using sliders to control a visualization is abstract. Implementing it on a phone doesn't make it patentable."

The Counter-Strategy

The goal is to anchor claims to **specific technical implementations**, not the abstract concept. For example:

- Not: "A method of guiding breathing using visual feedback"
- Better: "A method comprising: receiving continuous touch input from two capacitive touch sliders at opposite orientations; computing squash-and-stretch transformations on a 3D mesh in real time using WebGL shader parameters derived from said inputs; and rendering a spatial sequence of occluding plane pairs that approach the mesh along a Z-axis at a velocity determined by a target respiration interval"

An experienced software patent attorney drafts claims at this level of specificity. The abstract concept is not patentable; the specific technical system can be.

Design Patent: The Visual Appearance

Separate from utility patents, **design patents** protect the ornamental appearance of a functional item. A design patent on Breathe could cover:

- The specific visual appearance of the Morph (rounded cube, squash-stretch aesthetic)
- The Gate egg shapes and their spatial arrangement
- The overall UI composition (slider positions, labels, central form)

Design patents are:

- Cheaper and faster than utility patents (~\$2,000–\$5,000 with attorney, ~1–2 years)
 - Narrower in scope — protects exact appearance, not the concept
 - Harder to design around (must look substantially similar to infringe)
 - Often used alongside utility patents for layered protection
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Recommended Prior Art Search

Before meeting with an attorney, do your own searching on these databases:

Resource	URL	Search Terms
Google Patents	patents.google.com	"breathing visualization slider", "biofeedback touch interface", "breath pacing mobile", "breath rhythm game"
USPTO Full Text	patft.uspto.gov	Same terms

CPC Classification	—	A61B 5/0816 (biofeedback), A63B 23/18 (breathing exercises), G06F 3/0488 (touch sliders)
WIPO Patentscope	patentscope.wipo.int	International patents
Google Play / App Store	—	Search for active apps — may reveal prior art not yet in patent DBs

Keep a record of what you search and what you find. This helps your attorney.

Bottom Line on Patentability

The dual opposite-orientation slider mechanic driving a real-time 3D form, combined with the spatial gate timing system, appears to represent a genuinely novel interaction paradigm.

Whether a patent can be successfully obtained depends on:

1. Whether a thorough prior art search surfaces conflicting inventions
2. How skillfully the claims are drafted to survive Alice scrutiny
3. Whether the patent examiner agrees it's non-obvious

Given the apparent novelty, this is worth a consultation. The provisional patent path (\$1,500–\$3,000) is a low-cost way to establish priority while you decide whether to invest in a full patent.

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Trademark & Brand Protection: Breathe Project

Research, not legal advice. Consult a qualified IP attorney.

The Name "Breathe" — A Meaningful Concern

Before investing in trademark registration, you need to know about a potential conflict.

Apple has used "Breathe" as a brand for its guided breathing feature on Apple Watch since watchOS 3 (2016). While Apple rebranded it as "Mindfulness" in watchOS 8 (2021), Apple holds trademark registrations on the "Breathe" mark in health and wellness categories. Apple is known to aggressively defend its marks.

What This Could Mean in Practice

1. **Registration may be refused** — The USPTO could cite Apple's prior registration as a bar to registering your mark
2. **Opposition proceedings** — Apple could formally oppose your registration during the 30-day opposition window after publication
3. **Cease-and-desist risk** — Even without registration, Apple could send a C&D if they determine your app creates consumer confusion with their brand in the same market (wellness / health / breathing)

A Second Issue: "Breathe" Is Descriptive

"Breathe" directly describes what your app does. Trademarks that merely describe a product (e.g., "Cold and Creamy" for ice cream) are weak or unregistrable. The USPTO prefers distinctive marks that don't directly describe the product.

Your Options

Option	Pros	Cons
Proceed with "Breathe"	No change required	Apple conflict risk; descriptiveness weakness

Add a modifier ("Breathe Form", "Breathe / Morph")	Creates distance; more distinctive	Still uses the word Apple trademarked
Coin a new invented name	Strongest protection; no prior conflicts	Requires brand relaunch; invented names take time to build recognition

Recommendation: Have an attorney run a trademark clearance search on "Breathe" before filing anything. The search reveals the full landscape of existing marks and gives you a legal opinion on conflict risk. Cost: ~\$500–\$1,000.

Copyright: What You Have and What to Do

What You Have Automatically

Copyright is already yours — no registration needed. It covers:

- All source code files
- All visual design elements (Morph appearance, Gate aesthetics, color palette)
- All written text (tutorial copy, UI labels, mode descriptions)
- The overall visual expression of the UI

Why Register Anyway

Copyright registration with the US Copyright Office is optional, but strongly recommended because:

- **Required to sue in US federal court** — You cannot bring a copyright infringement lawsuit without a registration
- **Statutory damages** — If you register *before* infringement occurs, you can claim \$750–\$150,000 per work (without having to prove actual financial harm) plus attorney's

fees. Without registration, you can only recover actual damages (which may be hard to quantify for a new app).

- **Public record** — Creates an official dated record of your ownership, which discourages copying
- **Filing fee is low** — ~\$65 for a single work online, ~\$85 for multiple related works in one filing

How to file: Visit copyright.gov. Select "Work of Visual Art" for the app visuals, "Computer Program" for the code. You can bundle related works in one filing.

Trade Dress: The "Feel" of the App

Trade dress protects the overall visual appearance and feel of a product — the combination of design elements that consumers associate with a specific source, even without a brand name.

For Breathe, trade dress could eventually protect:

- The dark desaturated purple environment
- The specific aesthetic language of the Morph and Gates
- The overall compositional style (Morph centered, sliders flanking, environmental scroll)

Trade dress is typically pursued *after* a product is well-established in the market and consumers have come to associate the look with your brand. It's not a day-one priority, but worth knowing about.

Open Source Considerations

If you ever consider open-sourcing the code (making the GitHub repo public under a permissive license), be aware:

- Open-sourcing does not eliminate your copyright — you still own it and license it to others
- It does make a trade secrets argument impossible
- It does not affect patent rights (though it is a public disclosure that starts the patent clock)
- It makes copying much easier and harder to police

If patenting is a priority, finalize your IP strategy before open-sourcing.

Summary

IP Type	Your Current Status	Recommended Action
Copyright	Automatically owned	Register at copyright.gov
"Breathe" Trademark	Not registered	Get a clearance search before filing
Trade Dress	Too early	Revisit when product is established
Open Source	Closed (likely)	Delay until patent strategy is set

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